

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
HONORABLE MICHAEL L. MAU
1050 Mission Road, South San Francisco
Department 20, Courtroom L
September 11, 2026 at 9:00 AM

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept20@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5120 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 8:50 am.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 161 576 6143 Password: 142907

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
9:00 AM	
Line 1	
24-CIV-00269	HAMID KHAZAELI VS. DAVID A BREWER, ET AL

HAMID KHAZAELI
DAVID A BREWER

PRO SE
JOHN S. CLAASSEN

Doe Defendants' Special Motion to Strike Plaintiff's First Amended Complaint (C.C.P. § 425.16)

TENTATIVE RULING:

Defendants Carol DePond, Aragon Management, LLC, Susan V. Chamberlain, John Claassen, and Claassen Law Corp. - Defendants' law firm (hereinafter the "Doe Defendants") special motion to strike Plaintiff Hamid Khazaeli's ("Plaintiff") First Amended Complaint ("FAC") as to the Doe Defendants and Fictitious Name Amendments one through five pursuant to Code of Civil Procedure section 425.16 is GRANTED.

Doe Defendants' request for judicial notice of Exhibits A through G, below, is GRANTED. (Evid. Code § 452, subd. (d).)

- **Exhibit A** Plaintiff's February 17, 2026 First Amended Complaint for Damages (Case No. 25CIV07539)
- **Exhibit B** The Court's July 29, 2020 Order Denying Plaintiff's Motion for a New Trial
- **Exhibit C** January 16, 2025 Remittitur and Excerpts of Opinion for the 6th District Court of Appeal (Case No. H049215)
- **Exhibit D** Plaintiff's Declaration in Support of his Opposition to Defendants' Special Motion to Strike without Exhibits
- **Exhibit E** Declaration of Ali Ezzati in Support of Plaintiff's Opposition to Defendants' Special Motion to Strike
- **Exhibit F** Declaration of Sarkis Sarkisian in Support of Plaintiff's Opposition to Defendants' Special Motion to Strike
- **Exhibit G** Plaintiff's September 3, 2024 Supplemental Declaration with his attached Administrative Complaint

A. Background

This is an employment action involving allegations against Former NT (now dissolved) arising from plaintiff's employment with them from over a decade (nearly 13 years) ago. Plaintiff never worked for the new Notify defendant (no longer operating) or the other individual defendants. The underlying action for FEHA-based discrimination and retaliation is against three individual non-employers who testified for the defense at a 2020 in one of his prior lawsuits.

The Doe Defendants bring the instant special motion to strike, also known as an “Anti-SLAPP motion” pursuant to Code of Civil Procedure section 425.16, on the basis that the challenged speech was a protected activity and plaintiff does not and cannot establish the necessary probability that he will prevail on either cause of action raised in the FAC. Plaintiff specially appeared in opposition only to challenge the proof of service as improper because he, a pro se litigant, was only served electronically. However, the Court registry demonstrates proof of written notice by mail upon plaintiff’s service address of record, as filed with this Court on July 28, 2026. Notably, plaintiff’s special opposition expressly does **not** address the merits of the motion. (Special Opp. p. 2.)

B. Legal Standard

Code of Civil Procedure, section 425.16 provides that “[a] cause of action against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” (Code Civ. Proc., 425.16, subd. (b)(1); *Hastings Coll. Conservation Comm. v. Faigman* (2023) 92 Cal.App.5th 323, 330.) “A special motion to strike is a procedural remedy to dispose of lawsuits brought to chill the valid exercise of the constitutional right of petition or free speech.” (*Chitsazzadeh v. Kramer & Kaslow* (2011) 199 Cal.App.4th 676, 681-682.) “The purpose of the anti-SLAPP statute is to encourage participation in matters of public significance by allowing defendants to request ‘early judicial screening’ of claims targeting free speech or petitioning activities.” (*Wittenberg v. Bornstein* (2020) 50 Cal.App.5th 303, 311 (*Wittenberg*), quoting *Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871, 887; Code Civ. Proc., 425.16, subd. (a).)

Litigation of an anti-SLAPP motion involves a two-step, burden-shifting process. (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009 (*Bonni*).) “First, ‘the moving defendant bears the burden of establishing that the challenged allegations or claims ‘aris[e] from’ protected activity in which the defendant has engaged.’ Second, for each claim that does arise from protected activity, the plaintiff must show the claim has ‘at least ‘minimal merit.’ ” (*Ibid.*, citing *Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1061 (*Park*).) In order to satisfy the “arising from” requirement of section 425.16, defendants must demonstrate that the protected activity comes within one of the four categories set forth in section 425.16, subdivision (e). (*Park, supra*, 2 Cal.5th, at p. 1063.) An “act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue” includes “any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law...” (Code Civ. Proc. § 425.16, subd. (e)(2).)

When assessing prong one, courts “consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability.” (*Bonni, supra*, 11 Cal.5th at p. 1009.) The defendant’s burden is to identify what acts each challenged claim rests on and to show how those acts are protected under a statutorily defined category of protected activity. (*Ibid.*) Once the moving party meets its burden on prong one, the burden shifts to plaintiff to establish the second prong, a probability that he will prevail on the claims asserted. (Code Civ. Proc., 425.16, subd.

(b), *Durkin v. City and County of San Francisco* (2023) 90 Cal.App.5th 643, 651 (*Durkin*), citing *Baral v. Schnitt* (2016) 1 Cal.5th 376, 381-382 (*Baral*).) “If the plaintiff cannot make this showing, the court will strike the claim.” (*Bonni, supra*, 11 Cal.5th at p. 1009, citing *Park, supra*, 2 Cal.5th at p. 1061.)

C. Discussion

First Prong: Protected Speech Activity (Defendants’ Burden)

“Anti-SLAPP motions may only target claims ‘arising from any act of [the defendant] in furtherance of the [defendant’s] right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue....’ (§ 425.16, subd. (b).)” (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1062.) Relevant here, Code of Civil Procedure section 425.16, subdivision (e) includes “(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law” as an act in furtherance of speech or petition rights. Thus, the speech at issue in the complaint – the Doe Defendants’ “false testimonies at trial in or about winter 2020” (FAC ¶ 29), communications during trial, and related litigation conduct as well as the vicarious and agency allegations connecting the Doe Defendants’ to protected trial conduct and representation activities in litigation since 2017 (FAC ¶ 7) – fall squarely within the parameters of the statute as oral statements in a judicial proceedings. (See also *Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1115 [disclosures to attorneys and witnesses are also protected activity because they were made to prepare for and in anticipation of litigation. are protected activity].)

Second Prong: Probability of Success on Merits (Plaintiff’s Burden)

Once the moving party meets its initial burden, the burden shifts to the opposing party to establish a probability that it will prevail on its claim. (*Simpson Strong-Tie Co., Inc. v. Gore* (2010) 49 Cal.4th 12, 21.) To satisfy the burden on the second prong, plaintiff must present admissible evidence to substantiate a legally sufficient claim and make a prima facie factual showing sufficient to sustain a favorable judgment. (*Newport Harbor Offices & Marina, LLC v. Morris Cerullo World Evangelism* (2018) 23 Cal.App.5th 28, 42 (*Newport*).) “ ‘The anti-SLAPP statute does not insulate defendants from *any* liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, *meritless* claims arising from protected activity.’ ” (*Ibid.*)

This step has been described as a “ ‘summary-judgment-like procedure.’ [Citation].” (*Newport*, 23 Cal.App.5th, p. 42.) When reviewing this prong, the court does not weigh evidence or resolve conflicting factual claims but evaluates whether the plaintiff’s evidence, accepted as true, demonstrates “minimal merit.” (*Ibid.*) The defendant’s evidence is assessed only to determine if it defeats the plaintiff’s claim as a matter of law. (*Ibid.*, [internal quotations and citations omitted].) Put another way, a plaintiff ‘must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment....’” (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88–89.)

As argued by defendants, the Court’s analysis *could* end here because plaintiff has not filed a substantive opposition brief (only his special appearance to challenge service) thus plaintiff clearly

does not carry his burden under the second prong. Regardless, **even if plaintiff had filed an opposition brief**, the Court finds plaintiff does not have a substantial probability of success on the merits because it is precluded pursuant to the litigation privilege as alleged by defendants. (See *Flickinger v. Finwall* (2022) 85 Cal.App.5th 822, 840 [“A plaintiff cannot show a probability of prevailing on the merits of a cause of action for anti-SLAPP purposes where the cause of action is barred by the litigation privilege....”].)

“The litigation privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action” and to “communications that have some relation to an anticipated proceeding.” (*Herterich v. Peltner* (2018) 20 Cal.App.5th 1132, 1138, *as modified on denial of reh'g* (Mar. 28, 2018) [internal citations omitted].) As stated above, the retaliation cause of action as alleged against these defendants is based entirely on FAC paragraph 29 which baldly states “Defendants retaliated against Plaintiff by providing false **testimonies at trial** in or about winter 2020, refusing to provide job verifications, refusing to hire him because of his protected activity.” (FAC ¶ 29, emphasis added.) Then later, the FAC alleges “Defendants’ acts were malicious, oppressive or fraudulent with intent to vex, injury annoy, humiliate and embarrass Plaintiff...” (FAC ¶ 32.) The Court finds these statements are conclusory, unsupported, speculative and, therefore, fall fully short of establishing a sufficient prima facie showing of facts as is required. Accordingly, the Doe Defendants’ special motion to strike the FAC as to the Doe Defendants, and Fictious Name Amendments one through five, is GRANTED.

Having granted the special motion to strike Doe Defendants’ from the FAC, there is no necessity for the Court to rule on defendants’ request in the alternative for an order striking certain allegations from the FAC.¹

Judgement is therefore ordered in favor of Defendants Carol DePond, Aragon Management, LLC, Susan V. Chamberlain, John Claassen, and Claassen Law Corp. against Plaintiff. Therefore, if this tentative is adopted, Defendants are to also file and serve a separate proposed Judgment form.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If contested, parties may appear to argue the tentative ruling. The Court will then take the matter under submission, and the Court will prepare the Order after hearing.

¹ 1. Paragraph 7, page 2:18-24. 2. Paragraph 15, page 4:4 (“Defendants’ appeared and provided false testimonies at trial and damaged Plaintiff.”) 3. Paragraph 16, page 4:8-10 (“As a result of Defendants’ false testimonies described herein, Plaintiff was unable to collect on his valid money judgment in the amount of \$5,147,898:00, instead collecting nothing. Defendants also took Plaintiff for employment by their actions since 2013.”) 4. Paragraph 21, page 5:3 (“loss of judgment”) 5. Paragraph 29, page 6:9-10 (“Defendants retaliated against Plaintiff by providing false testimonies at trial in or about the winter 2020”) 6. Paragraph 30, page 6:13 (“loss of judgment”). (NOMM p.1.)

9:00 AM

Line 2

24-CIV-04638 RAMY KAUFLEDER EDEN v. GRAND MARTCO, INC., ET AL

RAMY KAUFLEDER EDEN
GRAND MARTCO, INC.

MICHEL J. MANNING
DONALD J. DOWLING

Plaintiff's Continued Motion to Approve Settlement from September 4, 2026

TENTATIVE RULING:

The Motion for Settlement Approval by Plaintiff Ramy Kaufler Eden ("Plaintiff") was continued from September 4, 2026 to allow Plaintiff to cure two notice and service defects, as noted below. The Motion is now GRANTED.

Prior Issues from September 4, 2026

1. The proof of service that was attached to the Notice of Motion and Motion for Settlement Approval, filed on February 23, 2026, was unsigned. The Motion is required to be served not only on Defendant, but also the Attorney General. (Cal. Code Regs, tit. 11, § 3008 [in a private Proposition 65 action, motion and supporting papers must be served on the California Attorney General at least forty-five days prior to the hearing on the motion]; Health and Safety Code, § 25249.7, subd. (f)(5) [plaintiff shall serve motion and all supporting papers on the Attorney General, who may appear and participate in a proceeding without intervening in the case].) Plaintiff has now filed a Notice of Continued Hearing Date re Motion for Settlement Approval that does reflect service on Defendant's counsel and on the Attorney General, curing this defect.
2. The original Notice of Hearing also failed to provide the correct date and location of the hearing. However again, Plaintiff has now filed a Notice of Continued Hearing Date re Motion for Settlement Approval that does reflect the correct date and the location of Dept. 20 at the Northern Branch, served on Defendant's counsel and on the Attorney General, curing this defect.

Factual Background

The action arises out of an alleged violation of Proposition 65 ("Prop 65"), which is found at Health and Safety Code section 25249.5 et seq.

The Complaint alleges that Defendant Grand Martco, Inc.'s ("Defendant") gas station located at 602 El Camino Real in Redwood City, failed to warn of environmental exposures to gasoline by posting a sign at each gas pump of such exposures, as required by Prop 65. Plaintiff Ramy Kaufler Eden ("Plaintiff") is acting as a private citizen enforcer. Plaintiff seeks a preliminary and permanent injunction from such exposures without providing clear and reasonable warnings, \$2,500 per day for each violation, and reasonable attorney's fees and costs.

On 2/23/26, Plaintiff filed this Motion for Settlement Approval.

Merits Analysis

"No person in the course of doing business shall knowingly and intentionally expose any individual to a chemical known to the state to cause cancer or reproductive toxicity without first giving clear and reasonable warning to such individual, except as provided in Section 25249.10." (Health & Saf. Code, § 25249.6.) A person who violates section 25249.6 may be enjoined by any court of competent jurisdiction. (Health & Saf. Code, § 25249.7, subd. (a).) An action may be brought a person in the public interest if: (1) the private action is commenced more than 60 days from the date the person has given notice of an alleged violation of section 25249.6 to the Attorney General and the district attorney, city attorney or prosecutor in whose jurisdiction the violation is alleged to have occurred and the alleged violator; and (2) neither the Attorney General, a district attorney, a city attorney or prosecutor has commenced and is diligently prosecuting an action against the violation. (Id., subd. (d)(1).) On October 30, 2023, Plaintiff served a 60-day Notice of Violation on Defendant, the California Attorney General and the San Mateo County District Attorney. (Charo Decl., ¶ 6, and Exh. B.) No public prosecutor commenced an enforcement action regarding the allegations in the Notice. (Id., ¶ 7.)

If there is a settlement of the public interest action brought by a person, the plaintiff shall submit the settlement to the court for approval upon noticed motion. (Health & Saf. Code, § 25249.7, subd. (f)(4).) The court must make three findings before approving any settlement: (1) any warning required by the settlement complies with Prop 65; (B) any award of attorney's fees is reasonable under California law; and (3) the penalty is reasonable based on criteria in Health & Safety Code section 25249.7(b)(2). (Ibid.) The plaintiff has the burden of producing evidence sufficient to sustain each finding. (Id., subd. (f)(5).) Plaintiff provide evidence to support each of these findings, as discussed below.

a. The warnings comply with Prop 65

As part of the Settlement between Plaintiff and Defendant, Defendant agreed to provide the safe harbor warning for service stations at Defendant's gas station as set forth in the California Code of Regulations. (See Settlement, § 2.1; Cal. Code Regs., tit. 27, § 25607(a); Cal. Code Regs, tit. 27, § 25607.27 [warning for environmental exposures from service stations it to include "WARNING" in all capital letters and bold print along with "Breathing the air in this area or skin contact with petroleum products can expose you to chemicals including benzene, motor vehicle exhaust and carbon monoxide, which are known to the State of California to cause cancer and

birth defects or other reproductive harm. Do not stay in this area longer than necessary. For more information go to www.P65Warnings.ca.gov/service-station.”].) The warning that Defendant agreed to in the Settlement mirrors the safe harbor warning in the California Code of Regulations, and thus it complies with Prop 65.

b. The attorney’s fees and costs are reasonable

The Settlement provides for attorney’s fees and costs of \$14,000. This amount consists of \$1,379.26 in costs, and \$12,620.75 in attorney’s fees. Plaintiff’s counsel spent at least 23.75 hours on this action, which yields an hourly rate of \$531.40. Plaintiff’s counsel’s hourly rate for Prop 65 matters is \$600 per hour. (Charo Decl., ¶ 16.) Plaintiff’s counsel has been practicing for more than 23 years. (Id., ¶ 13.) As such, the attorney’s fees and costs seem reasonable.

c. The penalty is reasonable

Prop 65 allows a penalty up to \$2,500 per day, of which Plaintiff gets 25% and the other 75% goes to the State of California to be kept in the Safe Drinking Water and Toxic Enforcement Fund, administered by the Office of Environmental Health Hazard Assessment (“OEHHA”). (Health & Saf. Code, § 25249.12, subd. (c)(1).) The parties agreed to a total civil penalty of \$4,000, of which Plaintiff will get \$1,000 and OEHHA will get \$3,000.

To determine the reasonableness of a penalty, the court shall consider all of the following:

- (A) The nature and extent of the violation.
- (B) The number of, and severity of, the violations.
- (C) The economic effect of the penalty on the violator.
- (D) Whether the violator took good faith measures to comply with this chapter and the time these measures were taken.
- (E) The willfulness of the violator's misconduct.
- (F) The deterrent effect that the imposition of the penalty would have on both the violator and the regulated community as a whole.
- (G) Any other factor that justice may require.

(Health & Saf. Code, § 25249.7, subd. (b)(2).)

The \$4,000 civil penalty appears reasonable. Plaintiff claims that this \$4,000 penalty is identical to the penalty approved by other courts in Prop 65 matters regarding a defendant's failure to provide clear and reasonable warnings for gasoline exposure at a single service station. (Charo Decl., ¶ 19.) The severity of the violation was also moderate since those coming to the gas station were still aware that they could be exposed to gasoline. Defendant is also a small business that operates two service stations in California, including the one at issue. Therefore, this amount is sufficient to deter any future violations. Defendant further posted the required warning after receiving Plaintiff's Notice. (Charo Decl., ¶ 21; Settlement, § 2.1.) Therefore, after considering all the factors set forth in section 25249.7(b)(2), the penalty seems reasonable.

Therefore, the Motion is GRANTED with the settlement approved and Judgment to be entered pursuant to the settlement agreement terms.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 3

24-CIV-06301 THERESA ZLATUNICH, ET AL VS. BURLINGAME BAY ASSOCIATES, ET AL

THERESA ZLATUNICH
BURLINGAME BAY ASSOCIATES

LAWRENCE S. VIOLA
MALCOLM D. DONALDSON

Defendant Burlingame Bay Associates' Motion for Summary Judgment

TENTATIVE RULING:

Defendant Burlington Bay Associates' Motion for Summary Judgment is DENIED, as follows:

Overview

Plaintiff Theresa Zlatunich fell on October 7, 2023, after taking about two steps onto the wooden Anza Lagoon Pedestrian Footbridge (the "Wooden Footbridge") in Burlingame; her husband Philip Zlatunich claims loss of consortium. Defendant Burlingame Bay Associates is the lessee responsible for maintaining the roughly 140-foot span where she fell. Defendant here moves for summary judgment.

Legal Standard

Cal. Code of Civ. Proc. section 437c governs both summary judgment and summary adjudication motions, and a motion for summary adjudication proceeds in all procedural respects as a motion for summary judgment. (Cal. Code of Civ. Proc. section 437c.) The statute permits parties to move for summary adjudication either independently or as an alternative to summary judgment, and courts apply the same substantive legal standards to both types of motions. (*Haney v. Aramark Uniform Services, Inc.* (2004) 121 Cal.App.4th 623.)

The moving party "bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Choochagi v. Barracuda Networks, Inc.* (2020) 60 Cal.App.5th 444.) If the movant carries this burden of production, it causes a shift, and the opposing party must then make a prima facie showing of the existence of a triable issue of material fact. (*Id.*; see also *Lemm v. Ecolab Inc.* (2023) 87 Cal.App.5th 159.) This burden-shifting framework applies regardless of which party moves for summary judgment or summary adjudication.

How parties carry their respective burdens depends on which party would bear the burden of proof at trial. (*Raghavan v. Boeing Co.* (2005) 133 Cal.App.4th 1120.) A defendant moving for summary adjudication must present evidence that either "conclusively negates an element of the plaintiff's cause of action" or shows "that the plaintiff does not possess, and cannot reasonably obtain," evidence necessary to establish at least one element of the cause of action. (*Cornell v. Berkeley Tennis Club* (2017) 18 Cal.App.5th 908, 924-925 quoting *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853-854.)

A triable issue of material fact exists only where the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (Cal. Code of Civ. Proc. section 437c .) Courts must view the evidence in the light most favorable to the opposing party and strictly construe the evidence of the moving party, resolving any evidentiary doubts in favor of the opposing party. (*Lemm v. Ecolab Inc.*, *supra*, 87 Cal.App.5th 159.) The trial court's role involves no findings of fact. (*Raghavan v. Boeing Co.*, *supra*, 133 Cal.App.4th 1120.)

Evidentiary Objections

Defendant's evidentiary objections are OVERRULED.

Analysis / Trivial Defect

Defendant argues that Plaintiffs have failed to show that Plaintiff Theresa Zlatunich's October 7, 2023 trip and fall was caused by more than a trivial defect.

The trivial defect doctrine recognizes that some defects are bound to exist even when reasonable care is exercised in property maintenance, and that such defects cannot reasonably be expected to cause accidents. (*Stathoulis v. City of Montebello* (2008) 164 Cal. App. 4th 559.) Although initially developed in the context of public entity liability under California Government Code sections 830 and 830.2, the doctrine extends equally to private, nongovernmental landowners. (*Caloroso v. Hathaway* (2004) 122 Cal. App. 4th 922.) In a two-step process, "[f]irst, the court reviews evidence regarding type and size of the defect. If that preliminary analysis reveals a trivial defect, the court considers evidence of any additional factors [bearing on whether the defect presented a substantial risk of injury]. If these additional factors do not indicate the defect was sufficiently dangerous to a reasonably careful person, the court should deem the defect trivial as a matter of law" (*Huckey v. City of Temecula* (2019) 37 Cal. App. 5th 1092, 1105, quoting *Stathoulis*, *supra*, 164 Cal.App.4th at pp. 567-568.)

The court decides triviality as a matter of law only if reasonable minds can come to only one conclusion; if the court determines that sufficient evidence has been presented so that reasonable minds may differ as to whether the defect is dangerous, the court may not rule that the defect is not dangerous as a matter of law. (*Stack v. City of Lemoore* (2023) 91 Cal. App. 5th 102, 110.)

Defendant here argues that the size of the purported defect that may have caused Theresa Zlatunich's fall would be $\frac{7}{8}$ inch at most, with Plaintiffs unable to identify which board Plaintiff tripped on, making the defect trivial and unidentifiable, and that additional factors do not elevate the defect to a dangerous condition. However, Defendant's Memorandum and Separate Statement of Undisputed Material Facts, (as supplied by Plaintiffs in their Separate Statement in Opposition), do not address whether Plaintiffs can supply evidence of a raised nail amounting to a dangerous condition. Defendant therefore has not met its burden to demonstrate that Plaintiffs do not possess and cannot reasonably obtain evidence necessary to establish at least one element of the cause of action.

With respect to whether Theresa Zlatunich could identify what she tripped on at the time of her fall, Defendant points to the Theresa Zlatunich Depo., p. Exh. C of the Onur Decl., at p. 13:12-18 as showing that Plaintiff could not identify what she tripped on at the time of her fall and could not state whether it was a board or a nail that caused her fall. Plaintiffs offer evidence that her right foot caught on a raised plank or a nail two steps onto the South end of the Wooden Footbridge. (Undisputed Material Fact "UMF" No. 10; Theresa Zlatunich Decl., ¶¶ 3; Daniel Decl., ¶¶ 4, Ex. B [Theresa Zlatunich Depo., p. 31:1-5].) Viewed in the light most favorable to Plaintiffs, this evidence supports a reasonable and probable inference that the defendant's negligence was a substantial contributing factor to Plaintiff's trip and fall. (*Kaney v. Custance* (2022) 74 Cal.App.5th 201, 217.) It therefore establishes a triable issue of material fact sufficient to defeat summary judgment even if Defendant had met its initial burden.

Photographs from December 6, 2023 provide evidence on the Wooden Footbridge of protruding deck screws, a wood knot extending above the walking surface, a deck plank out of plane with an adjacent plank, recesses in the wooden planks, protruding nails, gaps, and general unevenness. (Additional UMF No. 20; Viola Decl., ¶¶ 3-5, Exh. A; Kelley Decl., ¶ 25, Exhs. B, D.) Additionally, Plaintiffs offer evidence of prior complaints and incidents involving the Wooden Footbridge including a reported fall regarding a loose nail. (Additional UMF No.'s 23-25; Daniel Decl., ¶¶ 7, 14, Exh.'s, D, J.) This evidence shows a hazard that is qualitatively different than a mere flush height differential, and Defendant's position that it amounts to a trivial defect because of height measurements is therefore unsupported.

The Motion is accordingly DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 4

25-CIV-04080 RUDRA NAND, ET AL VS. BEN MAHABIR, ET AL

RUDRA NAND
BEN MAHABIR, ET AL

W. GEORGE WAILES
TAGHI ASTANEHE

Nominal Defendant Shree Sanatan Dharam Ramayan Mandli of Bay Area, Inc.'s Motion to Disqualify George W. Wailes, Esq. and John L. Fitzgerald, Esq. as Attorneys for Plaintiff Rudra Nand Individually and Derivatively on Behalf of Shree Sanatan Dharam Ramayan Mandli of Bay Area, Inc and Plaintiff Satish Datt, Individually and Derivatively on Behalf of Shree Sanatan Dharam Ramayan Mandli of Bay Area, Inc.

TENTATIVE RULING:

Initially, the Court notes that the moving party nominal Defendant Shree Sanatan Dharam Ramayan Mandli of Bay Area, Inc (herein referred to as "Movant" or "Temple") has not provided the complete address for the hearing. Department 20 is located at the Northern Branch, Courtroom L, 1050 Mission Road, South San Francisco, CA 94080. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Additionally, Movant's motion lacks any proof of service.

The Motion to Disqualify George W. Wailes, Esq. and John L. Fitzgerald, Esq., Etc. (the "Motion") brought by nominal Defendant Temple is DENIED.

Background

Plaintiffs allege that Defendants, who are three of the five members of the Board of Trustees of the Temple, have taken numerous actions which violate the Temple's bylaws, to the detriment of its reputation and standing in the community, including: improperly refusing membership, secretly admitting new members, and purporting to revoke Plaintiffs' membership; failing to conduct an annual General Meeting and Accounting, and improperly using Temple resources to fund themselves in this lawsuit; and manipulating election results and refusing to recognize the proper vote to remove Defendant Mahabir as a trustee since April 2025.

Through its Motion, the Temple seeks an Order disqualifying George W. Wailes, Esq., and John L. Fitzgerald, Esq. ("Plaintiffs' Counsel") from representing it i.e. the Temple. (Motion, 2:9-10.) While Movant also describes the Order sought as one disqualifying Plaintiffs' Counsel from representing Movant *as well as* from representing the individual Plaintiffs (cf. *id.*, 10:8, & Reply, 8:12-14), the Court rules upon the Motion as noticed (Motion, 2:9-10).

The Court notes, that a prior motion to disqualify Mr. Wailes brought by the individual defendants, was already denied. See, Minute Order filed January 9, 2026.

Governing Law

The governing statute provides that:

Every court shall have the power to do all of the following: ... To control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto.

(Code Civ. Proc., § 128, subd. (a)(5).) As the Supreme Court of California explains:

A trial court's authority to disqualify an attorney derives from the power inherent in every court "[t]o control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto." Ultimately, disqualification motions involve a conflict between the clients' right to counsel of their choice and the need to maintain ethical standards of professional responsibility. The paramount concern must be to preserve public trust in the scrupulous administration of justice and the integrity of the bar. The important right to counsel of one's choice must yield to ethical considerations that affect the fundamental principles of our judicial process.

(*People ex rel. Dep't of Corps. v. Speedee Oil Change Sys., Inc.* (1999) 20 Cal.4th 1135, 1145-46 (internal quotations and collected citations omitted).)

In cases of simultaneous, even *potentially* conflicting representations, the primary value at stake is the attorney's duty of loyalty. (*Flatt v. Superior Court* (1994) 9 Cal.4th 275, 284 (*Flatt*).) "[C]ourts and ethical codes alike prohibit an attorney from simultaneously representing two client adversaries, even where the substance of the representations are unrelated." (*Flatt, supra*, 9 Cal.4th 275, 285.) "The paradigmatic instance of such prohibited dual representation—one roundly condemned by courts and commentators alike—occurs where the attorney represents clients whose interests are *directly adverse in the same litigation*." (*Ibid.*, n.3 (emphasis in original).)

Analysis.

The Opposition asserts that Movant's cases actually support denial, in that they emphasize that an attorney may not simultaneously represent a defendant accused of wrongdoing and the nominal defendant entity, which is why this Court has already disqualified Mr. Astanehe from representing the Temple while also representing individual defendants (Order, January 22, 2026, 4:14-17; and Minute Order, November 7, 2025). Here, there are no claims for malfeasance pending against either Plaintiff, and none of the cases Movant cites supports the argument that because Plaintiffs bring this action on behalf of the Temple, their counsel represents the Temple. Instead, Plaintiffs are similarly situated to every other plaintiff bringing a derivative action, so that there is no conflict.

The Mahabir Declaration and the Supplemental Mahabir Declaration in Reply however do accuse Plaintiffs Nand and Datt of wrongdoing against Movant, including forgery in an election to gain control of Movant's Board and funds. However, both declarations are fundamentally problematic.

As to the Mahabir Declaration filed as part of this motion on February 9, 2026 (hereinafter “Mahabir’s 1st Decl.”), Mahabir declares he is the current President of the Temple. Mahabir’s 1st Decl., pg. 8, lines 20-21. He then describes an alleged loan on or about October 10, 2017 by several trustees of the Temple of \$100,000.00 to Alpesh Patel a real estate client of Plaintiff Satish Datt. *Id.* at pg. 8, lines 24-26. The “several trustees” who made the loan are not identified, and by the manner in which it was written, it does not even describe a loan made by the Temple. Mahabir then provides no facts that he was the President on or about October 10, 2017, nor that he was an officer, trustee or some other affiliate of the Temple at that time. Thus, Mahabir provides zero basis that he has any personal knowledge to even attest to the various facts he is claiming, and much if not all of his claims are inadmissible hearsay. The balance of Mahabir’s 1st Decl. suffers from these same fatal defects. Also the Court takes note that while Mahabir’s 1st Decl. is attached to the motion, none of the alleged “facts” are even substantively argued in the initial motion papers.

As to the Mahabir Reply Declaration filed on September 3, 2026 (hereinafter “Mahabir’s 2nd Decl.”), it like the underlying motion, has no Proof of Service. As such, it is impermissible and on that basis the Court is disregarding it. However, were the Court to consider it, then it is also fatally flawed; each numbered paragraph in Mahabir’s 2nd Decl. is described below:

1. Paragraph 1 adds alleged detail to the same claims in Mahabir’s 1st Decl., begging the question as to why it was not providing in the moving papers to allow Plaintiff’s counsel the requisite time to respond. Mahabir still provides zero basis that he has any personal knowledge to attest to the various supplemental facts he is claiming here, and again much if not all is still inadmissible hearsay.
2. Paragraph 2 Mahabir claims he was president on or around November 19, 2025, when he received a notice from the United States Bankruptcy Court, so for this he has personal knowledge. He claims that immediately thereafter the Temple retained David Butler, Jr. to represent it in the bankruptcy proceeding. Nothing herein lends support to the motion.
3. Paragraph 3 generally refers to the dispute that is part of this very litigation, i.e. an active dispute that does not lend support to the motion.
4. Paragraph 4, is an impermissible reference to a potentially privileged settlement communication which the Court will ignore.

Notably, Mahabir’s 2nd Decl. also attaches various exhibits, of which Exhibit B is a relevant example of the flaws in Mahabir’s claims. Exhibit B is an email thread, of a forwarded email from a “Jasmeen” on June 29, 2020 to Plaintiff’s attorney George Wailes. Notably, the section entitled “Primary Concerns and Issues (2017 Loan)” then describes the very same alleged facts in Mahabir’s 1st Decl. See, Mahabir’s 2nd Decl., pg. 10 (Exh. B, 2nd page). In other words, this email from an unknown person named “Jasmeen” which also contains hearsay, appears to indicate that Mahabir’s 1st Decl. is at least, double-hearsay.

As the California Rules of Professional Conduct provide, an attorney shall not without informed, written consent represent a client:

if there is a significant risk the lawyer’s representation of the client will be materially limited by the lawyer’s responsibilities to or relationships with another client, a former client or a third person, or by the lawyer’s own interests.

(Cal. Rules Prof. Conduct, rule 1.7(b).)

Attorney George Wailes is counsel of record for individual Plaintiffs Rudra Nand and Satish Datt, only. There is an inadequate showing that Mr. Wailes representation of these individual Plaintiffs, presents any risk of being limited due to Mr. Wailes past representation of his former client the Temple. Further, the Temple already has independent counsel in David Butler, Jr.

Additionally, there is zero factual basis to bring this motion against attorney John Fitzgerald, who does not appear to have been served with any part of the moving or reply papers and on that basis it is also denied. Mr. Fitzgerald has only appeared as limited scope co-counsel for the individual plaintiffs Rudra Nand and Satish Datt. See, Notice of Limited Scope Representation filed July 31, 2025. Based on the caption of that pleading, Mr. Fitzgerald has his own law firm, with his own unique email and phone number that is completely distinct than that of attorney George Wailes or Mr. Wailes law office. Apparently, they both “rent space on the same floor of an office building, but that does not make them partners.” Opp. Pg. 2, line 16. A shared office space is vastly different than being partners, or being part of the same firm, and is otherwise unremarkable.

Finally, the Court notes that it had previously *required* that the Movant Temple “will have to immediately retain *independent* counsel to appear in this case.” (Order, filed on November 21, 2025, 6:21-22 (emphasis added).) Movant’s papers supporting the Motion indicates that its current counsel David Butler, Jr. already had been chosen during Defendant Mahabir’s presidency to represent it in a bankruptcy case involving Plaintiff Datt’s real-estate client, also in November 2025. (See Mahabir’s 2nd Decl., ¶ 2.) Though the timing is interesting, Mr. Butler is apparently the *independent* counsel retained by the Temple pursuant to the Court’s prior Order. In any event by this motion’s general appearance, the Court deems David Butler, Jr. as counsel of record for the Temple.

In conclusion, the motion is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 5

26-CIV-03853 WILLIE UY VS. INTERSECT ENT, INC.

WILLIE UY
INTERSECT ENT, INC.

JOSHUA S FALAKASSA
CHERYL D. ORR

Defendant's Motion to Compel Arbitration

TENTATIVE RULING:

Defendant Intersect ENT, Inc.'s ("Defendant") unopposed Motion to Compel Arbitration is GRANTED.

Plaintiff Willie Uy ("Plaintiff") brings this action arising out of his former employment with Defendant. The Complaint alleges ten causes of action for discrimination, wrongful termination and other causes of action. Defendant seek to compel arbitration pursuant to the arbitration agreement entered into between Plaintiff and Defendant as part of Plaintiff's employment.

A court shall order the parties to arbitrate a controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that certain exceptions exist. (Code Civ. Proc., § 1281.2.) The party seeking arbitration bears the burden of proving the existence of an agreement to arbitrate by a preponderance of the evidence. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 754.) If the opposing party then raises a defense to enforcement, the opposing party bears the burden of producing evidence as to any fact necessary to that defense by a preponderance of the evidence. (*Ibid.*) If the opposing party meets the burden of producing sufficient evidence, the third step requires the party seeking arbitration to prove by a preponderance of the evidence that the parties formed a valid contract to arbitrate their dispute. (*Ramirez v. Golden Queen Mining Company, LLC* (2024) 102 Cal.App.5th 821, 830.)

Defendant meets its burden of showing that an agreement to arbitration Plaintiff's claims exists. This initial burden may be met by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature. (*Iyere, supra*, 87 Cal.App.5th at p. 755, citing Cal. Rules of Court, rule 3.1330.) Defendant provides a copy of the arbitration agreement signed by Plaintiff. (Zacharias Decl., Exh. A.) The arbitration agreement is entered into between Plaintiff and Defendant and provides for arbitration of all claims or controversies between the parties, including discrimination, termination and claims for violation of any federal, state, or other governmental law, statute, regulation, or ordinance. (*Ibid.*) Thus, Defendant shows the arbitration agreement encompasses the claims alleged in Plaintiff's Complaint.

Since Defendant shows an agreement to arbitrate exists, Plaintiff then bears the burden of raising a defense to enforcement of the arbitration agreement. Plaintiff has not opposed this Motion and therefore fails to raise such a defense. As a result, the court finds it does not need to address Defendant's remaining arguments.

Plaintiff and Defendant are hereby ORDERED to arbitrate the claims in the Complaint pursuant to the arbitration agreement.

Although the court usually stays the court action upon ordering an action to arbitration, Defendant unusually did not move to stay this action as part of this Motion. (See Code Civ. Proc., § 1281.4 [“If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.”].) If parties appear they can orally move or stipulate to a stay of this case.

In the alternative, the Court has the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency. (*Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484. The Court thus will stay this case pending arbitration completion or until further Order of the Court. As such, the Case Management Conference scheduled for November 23, 2026 is continued to November 22, 2027 at 9:00 a.m., still before the Civil Commissioner / Courtroom H, on for status of arbitration.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 6/UD Line 1

26-UDL-00884 DONNA KOPEC VS. ROBERTA WARNER, ET AL

DONNA KOPEC
ROBERTA WARNER

MARTIN M. EISENBERG
PRO SE

Plaintiff's Motion to Compel Answers to Interrogatories and Response to Demand for Production of Documents

TENTATIVE RULING:

Plaintiff Donna Kobec's Motion to Compel Answers to Interrogatories and Response to Demand for Production of Documents is CONTINUED to October 9, 2026 at 9:00 a.m. on the U.D. Law & Motion Calendar to allow curing of the defect indicated below.

As a preliminary matter, the proof of service filed with the motion fails to state what documents were served. (Aug. 27, 2026 Proof of Service, § 4.) While it states that the documents purportedly served are listed in an attachment to the proof, the attachment is missing. (See *id.*, *passim.*)

Therefore, the proof of service fails to set forth the exact title of the document served as required by subdivisions (a)–(c) of Code of Civil Procedure section 1013a in order to show proper service by mail pursuant to subdivision (a) of Code of Civil Procedure section 1013.

“Successful service by mail requires strict compliance with all statutory requirements, including those set forth in section 1013; the failure to comply deprives a court of jurisdiction to act.” (*Lee v. Placer Title Co.* (1994) 28 Cal.App.4th 503, 509.) Accordingly, the motion may be continued for Plaintiff to file a corrected Proof of Service with a proper attachment demonstrating that the motion was in fact previously served on Defendant, or heard if it is filed prior to the hearing..

In the alternative, if Plaintiff did not serve Defendant with this motion, then the motion will be DENIED without prejudice to a renewed motion being properly noticed, served, and supported by valid proof of service.

To address this procedural defect, this tentative is deemed contested and moving counsel is to appear (Zoom is ok).

Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 7/UD Line 2

26-UDL-00894

THE JOHN STEWART COMPANY VS. MARIVIC BUSTOS

THE JOHN STEWART COMPANY
MARIVIC BUSTOS

MERCEDES A. GAVIN
PRO SE

Plaintiff's Motion to Compel Defendant's Responses to Plaintiff's Form Interrogatories – General, Set One, Plaintiff's Request for Production of Documents, Set One, to Deem Admitted Plaintiff's Request for Admissions, Set One, and Request for Sanctions Against Defendant in the Amount of \$585.00

TENTATIVE RULING:

Plaintiff The John Stewart Company's motion to compel responses to General Form Interrogatories (Set One), Unlawful Detainer Form Interrogatories (Set One), and Requests for Production (Set One) is GRANTED. Plaintiff's motion to deem unanswered requests admitted in its Requests for Admission (Set One) is also GRANTED.

Plaintiff's request for \$585.00 in sanctions against Defendant Marivic Bustos is GRANTED.

DISCUSSION

On August 3, 2026, Plaintiff served its General Form Interrogatories (Set One), Unlawful Detainer Form Interrogatories (Set One), Requests for Production (Set One) and Requests for Admission (Set One) on Defendant, via overnight mail. (Gavin Decl., ¶¶ 2-6.)

Defendant's responses were due on August 11, 2026. (*See* Code Civ. Proc., §§ 2030.260, subd. (b), 2031.260, subd. (b), and 2033.250, subd. (b) [providing five days to respond to discovery requests in unlawful detainer actions]; *see also* Code Civ. Proc., § 1013 [extending response time by two court days for service by overnight mail].) Defendant failed to serve responses by the deadline and still had not responded when Plaintiff filed this motion on August 25, 2026. (Gavin Decl., ¶ 7.)

a) Motion to Compel Responses

If a party to whom interrogatories and requests for production of documents are directed fails to serve timely responses, the propounding party may move for an order compelling responses. (Code Civ. Proc., §§ 2030.2900, subd. (b), 2031.300, subd. (b).) Here, Defendant failed to respond to Plaintiff's discovery demands by the statutory deadline.

Plaintiff's motion to compel Defendant's responses to Plaintiff's General Form Interrogatories (Set One), Unlawful Detainer Interrogatories (Set One), and Requests for Production of Documents

(Set One) is GRANTED.

Defendant shall serve responses within five (5) days of notice of entry of this order.

b) Motion to Deem Requests for Admission Admitted

If a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek and order that “the truth of any matters specified in the requests be deemed admitted.” (Code Civ. Proc., § 2033.280, subd. (b).)

Plaintiff seeks an order deeming the following matters from Plaintiff’s Requests for Admission (Set One) admitted:

1. Plaintiff The John Stewart Company is the authorized property manager who has authorization to sue and take the premises located at 415 Gateway Drive #38, Pacifica, CA 94044 back in its own name.
2. The current monthly rent for the premises located at 415 Gateway Drive #38, Pacifica, CA 94044 is \$1,249.00 per month.
3. On May 12, 2026, Plaintiff caused Defendant to be served a Notice to Pay Rent or Quit by posting a copy of the notice to Defendant at the premises and by mailing a copy to Defendant at the premises.
4. On June 11, 2026, the period stated in the Notice to Pay Rent or Quit expired at the end of the day.
5. You did not make payment in full to Plaintiff as required by the Notice to Pay Rent or Quit on or before June 11, 2026.
6. As of May 12, 2026, you owed Plaintiff at least \$3,747.00 in rent for the premises located at 415 Gateway Drive #38, Pacifica, CA 94044.
7. You failed to pay your monthly rent in full for the month of March 2026.
8. You failed to pay your monthly rent in full for the month of April 2026.
9. You failed to pay your monthly rent in full for the month of May 2026.
10. Defendant has never made a request for reasonable accommodation to Plaintiff regarding Defendant's disability.

(Gavin Decl., Ex. 4, RFA, Set One.)

Plaintiff’s motion to deem Plaintiff’s Requests for Admission (Set One) admitted is GRANTED.

c) Sanctions

“[T]he court shall impose a monetary sanction . . . against any party . . . who unsuccessfully makes or opposes a motion to compel” a response to a discovery request, “unless it finds that that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c).)

Similarly, “[i]t is mandatory that the court impose a monetary sanction . . . on the party . . . whose failure to serve a timely response to requests for admission necessitate[s] a motion” to deem the requests admitted. (Code Civ. Proc., § 2033.280, subd. (c).)

Sanctions imposed by the Court for failing to respond to an authorized method of discovery may include the reasonable expenses, including attorney’s fees, incurred by the opposing party as a result of the failure to respond. (Code Civ. Proc., § 2023.030, subd. (a).)

Here, Plaintiff seeks sanctions against Defendant in the amount of \$585.00, which includes attorney’s fees for 1.5 hours of work performed in bringing this motion, at a rate of \$350.00 per hour, and \$60 for the cost of filing this motion. (Gavin Decl., ¶¶ 8-10.) The Court finds Plaintiff’s request for sanctions reasonable.

Plaintiff’s request for sanctions against Defendant in the amount of \$585.00 is GRANTED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.
